

25AVCV00535 25AVCV00535

County: los-angeles

Division: Civil Law and Motion

Department: A14

Hearing date: 2026-09-22

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SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES – NORTH DISTRICT

KATHLEEN CARTER; RAY CARTER; and STANTON CARTER,

Plaintiffs,

v.

38551 and 38661 11TH STREET EAST, LLC; EXCEL RESIDENTIAL SERVICES, INC.; PINKAL JOGANI; ARIHEL J. RAMIREZ; and DOES 1 through 25, inclusive,

Defendants.

Case Number 25AVCV00535

[TENTATIVE]

RULING ON MOTION

Date of Hearing: September 22, 2026

Dept. A-14

Judge William H. Forman

I. Background

Defendants 38551 & 38661 11th Street East, LLC ("11th Street"), Excel Residential Services, Inc. ("Excel") (collectively "Defendants") move to withdraw the Court's Order deeming Plaintiffs' Requests for Admission, Set One admitted and permitting Defendants to file amended responses.

On April 24, 2025, Plaintiffs Kathleen Carter, Ray Carter, and Stanton Carter ("Plaintiffs") filed a Complaint against Defendants and Arihel J. Ramirez ("Ramirez"), asserting 10 causes of action for (1) Breach of Agreement, (2) Breach of the Covenant of Quiet Enjoyment, (3) Violation of Civ. Code §§ 1941, 1941.1, and 1942.4, (4) Willful Interruption of Services - Violation of Civ. Code § 789.3, (5) Intentional Infliction of Emotional Distress, (6) Private Nuisance, (7) Unlawful Actions by Landlord to Influence Tenant to Vacate, (8) Negligence, (9) Constructive and Retaliatory Eviction, and (10) Violation of Unfair Competition Law (Bus. & Prof. Code § 17200, et seq.).

Plaintiffs allege that they were tenants of the apartment building owned, operated, controlled, and managed by Defendants located at 38551 11th Street, Palmdale, CA 93550, Unit 10 (the "Property") until they were constructively and retaliatorily evicted. Plaintiffs allege 1) existence of conditions including mold and mildew growth, defective and substandard plumbing, inadequate security, lack of hot water and proper water supply, and cockroach infestation, 2) failure to repair, and 3) unlawful actions taken by Defendants to influence Plaintiffs to vacate the Property.

On July 22, 2025, Defendants filed an Answer. The Court entered Default as to Ramirez on December 15, 2025.

On April 20, 2026, Plaintiffs filed a Motion to Deem All Requests for Admissions ("RFAs") Admitted. Defendants did not oppose the Motion or appear at the hearing on the Motion.

On May 7, 2025, the Court granted Plaintiffs' Motion and deemed all RFAs admitted as to all Defendants.

On June 5 and 16, 2026, Defendants filed their Motion to Withdraw the Orders deeming RFAs admitted and for an order permitting Defendants to serve amended responses.

On September 9, 2026, Plaintiffs filed their Opposition.

On September 15, 2026, Defendants filed their Reply.

II. Legal Standard

Standard for Relief From Admissions – Code of Civil Procedure section 2033.300 provides that "[a] party may withdraw or amend an admission made in response to a request for admission only on leave of court granted after notice to all parties." (Code Civ. Proc., § 2033.300, subd. (a).) "The court may permit withdrawal or amendment of an admission only if it determines that the admission was the result of mistake, inadvertence, or excusable neglect, and that the party who obtained the admission will not be substantially prejudiced in maintaining that party's action or defense on the merits." (Code Civ. Proc., § 2033.300, subd. (b).) This includes admissions deemed admitted by court order under Code of Civil Procedure section 2033.280, subdivision (b). (See *Wilcox v. Birtwhistle* (1999) 21 Cal.4th 973, 979–80.)

The terms "mistake, inadvertence, or excusable neglect" under section 2033.300 have the same meanings as the terms used in Code of Civil Procedure section 473, subdivision (b). (*New Albertsons, Inc. v. Superior Court* (2008) 168 Cal.App.4th 1403, 1419.) Therefore, the mistake, inadvertence, or excusable neglect must be reasonable, in that a reasonably prudent person

under similar circumstances might have made the same error. (Austin v. Los Angeles Unified School District (2016) 244 Cal.App.4th 918, 929.)

The court may impose conditions on the granting of the motion that are just, including, but not limited to: (1) “[a]n order that the party who obtained the admission be permitted to pursue additional discovery related to the matter involved in the withdrawn or amended admission,” or (2) “[a]n order that the costs of any additional discovery be borne in whole or in part by the party withdrawing or amending the admission.”(Code Civ. Proc., § 2033.300, subd. (c).)

“Section 2033.300 eliminates undeserved windfalls obtained through requests for admission and furthers the policy favoring the resolution of lawsuits on the merits.” (New Albertsons, supra, 168 Cal.App.4th at 1418.) “Because the law strongly favors trial and disposition on the merits, any doubts in applying section 2033.300 must be resolved in favor of the party seeking relief.” (Id. at 1420.) “Accordingly, the court’s discretion to deny a motion under the statute is limited to circumstances where it is clear that the mistake, inadvertence, or neglect was inexcusable, or where it is clear that the withdrawal or amendment would substantially prejudice the party who obtained the admission in maintaining that party’s action or defense on the merits.” (Id. at 1420-21.)

III. Discussion

Application – Defendants move for relief and withdrawal of their admissions to Plaintiffs’ RFAs, Set One pursuant to Code of Civil Procedure section 2033.300 on the grounds that the failure to provide responses to the discovery and oppose the motion to deem the RFAs admitted was the result of attorney mistake, inadvertence, and excusable neglect between Defendants’ two law firms, and because Plaintiffs will not be prejudiced by granting relief.

Defendants set forth the following circumstances leading to the admissions:

On September 17, 2025, Plaintiffs served 4 sets of discovery on each Defendant, including RFAs, Set One, Requests for Production, Set One, Special Interrogatories, Set One, and Form Interrogatories – General, Set One. At the time of service, Defendants were represented by Park & Lim, LLP (“PL”). On October 24, 2025, Ecoff Campaign & Kay, LLP (“ECK”) associated in as defense counsel along with PL in over 25 cases for Defendants Excel and Jogani, including this case. The work was then divided between the two firms. PL was initially responsible for responding to discovery, and exchanged communications with Plaintiff’s counsel regarding the timeline for responding. PL and ECK later agreed that ECK would take the lead on this matter and prepare Defendants’ discovery responses when they became due on January 2, 2026, but PL still continued to work on this file as the firms transitioned the cases from PL to ECK.

When Defendants’ responses were due, Defendants’ counsel at ECK, Lawrence C. Ecoff (“Ecoff”), confused this matter with another and believed PL was responsible for responding. At the time the responses were due, two of the four ECK attorneys assigned to this case were engaged in a three month trial in Orange County, which commenced on October 20, 2025 and concluded on January 26, 2026. Plaintiffs’ counsel then served a meet and confer letter and their motions to compel the 12 sets of discovery to both PL and Ecoff, but Ecoff still believed PL was responsible for the discovery responses and took no action. Ecoff’s mistake resulted in failure to serve Defendants’ discovery responses, oppose the motions to compel, and appear at the hearing to argue the motions. Following the May 7, 2026 hearing, Plaintiff’s counsel notified Defense counsel about the orders, and on May 8, 2026, Defense counsel realized their error, contacted Plaintiff’s counsel regarding a stipulation to allow Defendants to withdraw the admissions, and Plaintiff’s counsel refused to set aside the order.

(See Motion, p. 4:11-5:18, p. 7:16-19; Ecoff Decl., ¶¶ 3-10; Kay Decl., ¶ 3.)

Plaintiffs supplement the factual circumstances as follows:

On October 15, 2025, Defense counsel requested an extension for the responses to November 14, 2025, which Plaintiffs granted. On November 14th, Defense counsel requested a further three week extension citing illness and association of new counsel, which Plaintiffs granted. On December 4, 2025, following a telephone conference, Defense counsel requested an extension to January 2, 2026, which Plaintiffs granted with the caveat that they would not grant any further extension. No responses were served. Plaintiff's counsel sent a meet and confer letter to PL and Ecoff on January 19, 2026 demanding responses without objection by February 2, 2026. Defense counsel did not respond to this letter. In the eleven weeks from conclusion of Ecoff's Orange County trial on January 26, 2026 to April 14, 2026, the date the motion to deem the RFAs admitted was filed, Defendants did not serve any responses. On May 26, 2026, Defendants served responses to the Special Interrogatories, Form Interrogatories, and Requests for Production, but did not serve, and have never served, any response to the RFAs.

(See Opp., p. 3:7-4:11; Jacobsen Decl., ¶¶ 4-10.)

For the reasons set forth below, the Court finds that for the purposes of Section 2033.300, Defendants have sufficiently established that their mistake, inadvertence, and neglect was not clearly inexcusable, and Plaintiffs have failed to establish substantial prejudice would result from granting the motion.

To start, Plaintiffs misstate the general standard for mistake, inadvertence, excusable neglect of counsel in holding Defense counsel to a reasonably prudent attorney standard. Generally, for non-attorney error, the mistake, inadvertence, or excusable neglect must be reasonable, in that a reasonably prudent person under similar circumstances might have made the same error. (Austin v. Los Angeles Unified School District (2016) 244 Cal.App.4th 918, 929.) The same standard applies to error of counsel. (See McClain v. Kissler (2019) 39 Cal.App.5th 399, 414 ["the discretionary relief provision of section 473 only permits relief from attorney error 'fairly imputable to the client, i.e., mistakes anyone could have made.' [Citation.] 'Conduct falling below the professional standard of care, such as failure to timely object or to properly advance an argument, is not therefore excusable.'"]) Here, Defense counsel is not seeking relief for a legal error, but on the grounds that ECK mistakenly believed the preparation and service of Defendants' responses were not their responsibility. Therefore, the Court holds ECK to a reasonably prudent person standard, i.e., a mistake anyone could have made and which is attributable to the client.

The Court does find some of the conduct on behalf of ECK and PL inexcusable. For example, on service of Plaintiffs' counsel's January 19, 2026 meet and confer letter regarding failure to provide RFA responses, PL and ECK's failure to communicate to ensure their clients' discovery responses were completed is not excusable. Nor is the failure to verify which firm would be responsible for responding to Plaintiffs' motions to compel. Both PL and ECK were on clear notice that their clients' discovery responses had not been completed or provided, including their RFA responses, and that failure to respond could, and did, ultimately result in admissions that are likely fatal to their clients' defense. It is inexcusable for both firms to agree to joint representation, undertake such representation on multiple cases, and fail to communicate with one another or adequately manage and track the individual cases. This conduct, on its own, would warrant denial. However, the Court must analyze the circumstances as a whole, and determine ultimately whether Ecoff's belief that he was not the responsible attorney underlying his failure to act was clearly inexcusable, and the Court cannot base its ruling solely on the failure of PL and ECK to communicate and properly monitor all of their clients' cases.

Plaintiffs rely heavily on the factual circumstances regarding Defense counsel's numerous extension requests and Plaintiffs' correspondence in support of finding inexcusable neglect, but their exhibits provided in opposition reinforce Ecoff's series of events. Exhibit B establishes that PL requested an extension to respond to discovery on October 15, 2025, and neither ECK nor Ecoff are copied. Exhibit C establishes that the same is true for the November 14, 2025 request. Exhibit D establishes that PL requested a telephone call with Plaintiff's counsel on December 3, 2025, that Plaintiff's counsel engaged in a telephone call with PL on December 4, 2025, and that PL requested an extension to January 2, 2026. Based on Plaintiffs' evidence and Ecoff's undisputed version of events, neither ECK nor Ecoff were copied on or involved in this chain of correspondence. Exhibit E establishes that the January 19, 2026 meet and confer letter was sent via email to four members of PL, and Ecoff was the only employee of ECK served with the meet and confer letter. Pages two and three of the letter include "PARK & LIM LLP" in the top lefthand corner with no mention of ECK. The Court also notes that Ecoff's October 24, 2025 Notice of Association of Counsel states that all correspondence should be provided to Ecoff.

This is not to say that Plaintiffs' counsel acted improperly or negligently in serving these documents or in attempting to meet and confer with LP to obtain responses to the RFAs, particularly where there is nothing on the record indicating that either

firm informed Plaintiffs' counsel that all discovery-related matters would be handled by ECK or provided alternate service addresses for ECK. However, these circumstances do, to some extent, substantiate Ecoff's claims that this matter was in the process of being transferred from PL to ECK at or around the time the discovery responses were due in early January and that PL initially took the lead on discovery in this action. They also do not directly show that Ecoff's belief that PL was the firm responsible for serving Defendants' discovery responses was clearly unsupported, as the meet and confer correspondence appears primarily directed to PL.

The circumstances, taken as a whole, establish the following: when Plaintiffs' RFAs were served, PL was the only firm representing Defendants. ECK did not associate as counsel until after the RFA responses were initially due. As of December 4, 2025, PL was the only firm engaged in correspondence with Plaintiffs' counsel regarding the parties' discovery in this case. The January 2, 2026 responsive deadline was set by PL without ECK's involvement. At some point between December 4, 2025 and January 2, 2026, this matter, along with over 25 other related matters involving the same Defendants, was in the process of being transferred from PL to ECK, and ECK agreed to handle discovery in this case. Ecoff mistakenly mixed this case up with another transferred case and believed that PL remained responsible for the discovery responses in this action. Ecoff was engaged in a three month long trial that commenced before ECK's association as counsel and concluded after the responses were due and after Plaintiffs' meet and confer letter was sent. Ecoff received no documents or correspondence from Plaintiffs' counsel related to discovery in this case before the January 2, 2026 deadline. Ecoff received three documents related to discovery in this case after the responsive deadline had passed: (1) Plaintiffs' meet and confer correspondence on January 19, 2026, directed to four members of PL and one from ECK, Ecoff, (2) Plaintiffs' discovery motions on April 14, 2026, and (3) the Court's Orders granting Plaintiffs' motions on May 7, 2026. On May 8, 2026, ECK requested a stipulated withdrawal of the admissions, and Plaintiff's counsel refused.

Under these circumstances, taken together, the Court does not find Ecoff's belief that ECK was not responsible for Defendants' discovery responses clearly inexcusable. These circumstances are similar to those in which Courts have found relief warranted. In *New Albertsons*, a defendant supermarket admitted a photograph of the scene of the plaintiff's injury showed a bag of ice on the ground. The defendant subsequently moved to withdraw the admission on the grounds that the defendant mistakenly thought the photograph was a bag of ice, and counsel believed the plaintiff's claims were not predicated on the existence of a bag of ice and mistakenly thought admission made no difference in the case's outcome. The Court found that the trial court erred in denying the motion, as although the defendant and its attorneys had reason to believe it was not a bag of ice and understood the significance of the admission, it was arguably excusable, and therefore, not clearly inexcusable. (See *New Albertsons*, supra, 168 Cal.App.4th at 1421.) Here, Ecoff had some reason to believe PL was not responsible for the discovery responses, evidenced by Plaintiffs' meet and confer letter, motions to compel, and ECK's apparent agreement to handle the discovery. However, the Court cannot say under the circumstances that this belief was blatantly inexcusable.

Even more on point is *Elston*. The Court found relief warranted where counsel failed to respond to RFAs, but stated he was busy with other matters during the responsive period, his office was understaffed, the papers were misplaced, and he was unaware of the RFAs until the answers were overdue. (*Elston v. City of Turlock* (1985) 38 Cal.3d 227, 234-35 (disapproved on other grounds).) The Supreme Court noted in *Elston* that "[w]here an attorney states that he was unaware of his duty to appear or answer because his employees misplaced papers or misinformed him as to the relevant date, relief is routinely granted." (*Id.* at 234.) Here, Ecoff was clearly aware of the RFAs and his failure to respond was not due to a calendaring error or misplacement of documents. However, he has set forth sufficient information to support his contention that he was unaware of his duty to appear or answer because he mistakenly mixed the present case up with another, believed the responses were to be completed by PL, was the only ECK employee copied on any correspondence or service emails, was engaged in a three month long trial, and did not calendar the deadline or otherwise recognize his responsibility for the discovery in the case.

Unless inexcusable neglect is clear, the policy favoring trial on the merits prevails, and any doubts must be resolved in favor of the party moving for relief. Therefore, the Court finds Ecoff's conduct was not, as a whole, clearly inexcusable, and relief is warranted.

Plaintiffs have not shown that they will suffer substantial prejudice in granting this motion. As Plaintiffs note, the relevant question is "whether permitting withdrawal would impair Plaintiffs' ability to prove the matters now conclusively established by the admissions." (*Opp.*, p. 5:11-12.) Here, Plaintiff has not established that their ability to prove the admitted matters will be impaired or prejudiced.

Plaintiffs assert that significant prejudice will result because counsel has already relied on the Orders and structured their discovery plan, expert workup, and case strategy around the admissions that Defendants left unchallenged for almost a month, and withdrawal would require Plaintiffs to reconstruct from scratch at their own expense a discovery record that Defendants were obligated to provide in October 2025[1]. (Opp., p. 9:8-12.) However, Defendants were not obligated to provide these RFA responses in October 2025 in light of Plaintiffs' counsel's granting Defendants' extension requests. Plaintiffs do not dispute that the day after the Order was issued, on May 8th, Defense counsel contacted Plaintiffs' counsel requesting a stipulation to withdrawal the admissions. Defense counsel then filed the present motion less than one month after the Order was issued on June 5th. Plaintiffs appear to state that they crafted a discovery plan entirely from scratch in reliance on the admissions in the less than four weeks following the Court's Order, but do not identify how it changed from any prior discovery plan they had in place, or how any such modification was reasonable, given that they were almost immediately on notice that Defendants were seeking withdrawal of the admissions. Moreover, the same date the RFAs were deemed admitted, the Court also granted Plaintiffs' nine other motions to compel further discovery responses, indicating that prior to the Order, Plaintiffs had, to some extent, a discovery plan in place and sought targeted information underlying their claims. Modification of a discovery plan over a year into the case does not establish substantial prejudice where there is no evidence that Plaintiffs initial plan has been prejudiced resulting in loss of evidence.

Plaintiffs' argument that loss of discovery presents substantial prejudice is unpersuasive. Plaintiffs do not point to any piece of evidence that has been lost or any discovery route that has been impeded. For example, Plaintiffs refer to RFA Nos. 27, 39, 43, 45, and 47 regarding testimonial evidence, which they contend goes "directly to the identity and knowledge of the individuals who inspected, maintained, and repaired the Premises and who authorized the painting-over of mold. Those are precisely the witnesses whose memories fade and whose employment ends. Defendants have refused for nearly a year to identify them." (Opp., p. 9:3-7.) However, these RFAs do not request the identities, contact information, or scope of knowledge of any witness. These RFAs request admission that (1) at least one person employed by or affiliated with Defendants a) was responsible for inspecting, maintaining, or repairing the Property during Plaintiffs' tenancy, b) is most knowledgeable regarding tenant habitability complaints at the Property, and c) authorized or approved painting over mold at the Property, (2) that Defendants hired, retained, or contracted persons or entities to provide pest control services at the Property during Plaintiffs' tenancy, and (3) that at least one inspection of the Property was conducted by Defendants during Plaintiffs' tenancy.

Plaintiffs do not establish, and the Court does not recognize, how withdrawing admission to these requests prejudices Plaintiffs or precludes them from identifying and contacting potential witnesses to prove their case. Whether these RFAs are admitted or denied, Plaintiffs still must undertake further discovery to identify these witnesses, obtain substantiating documentation, and conduct further discovery as necessary to obtain relevant and admissible evidence to prove their case.

Moreover, as Defendants note, Plaintiffs allege their tenancy ended in September of 2024, this case was filed in April of 2025, the RFAs were deemed admitted in May of 2026, and Defendants filed this motion in June of 2026. Plaintiffs fail to identify what evidence has been lost from May 7, 2026 to date that would have been obtained but was not due to the admissions, which was not already lost between September of 2024 and May 7, 2026. Plaintiffs do not identify what discovery, if any, they would have conducted from May 7, 2026 to date had the RFAs not been deemed admitted, or identify any reason they cannot still conduct such discovery. Plaintiffs do not identify any witnesses that have been made unavailable since May 7, 2026 due to the admissions.

Plaintiffs further assert that they have been prejudiced in that they have incurred monetary expense in filing twelve motions to compel and in filing an opposition to this motion. Expenses incurred in filing motions to compel responses to discovery are irrelevant to this motion as they concern other forms of discovery.. However, the Court determines that the current motion would have been unnecessary had ECK been paying sufficient attention to this matter. The Court finds that it is reasonable to grant Plaintiffs' request for sanctions in the amount of \$5,000 for the litigation that have had to engage in due to ECK's neglect..

Otherwise, Plaintiffs have identified no substantial prejudice that would result from granting relief. These RFAs were included in the first round of discovery served in the matter and Plaintiffs have not established that any significant discovery was forfeited or propounded in reliance on the admissions. No identifiable evidence has been lost. Moreover, trial is set for July 2, 2027, with a discovery cutoff of June 2, 2027 and expert designation deadline of May 13, 2027. Plaintiffs have not established any inability to conduct discovery and have every opportunity, and ample time, to do so.

To address Plaintiff's remaining arguments, the Court notes that there is no requirement for Defendants to serve or attach proposed amended responses after RFAs have been deemed admitted by Court Order. The Court does not need to make a determination at this stage whether the RFA responses would be code-compliant, verified, or served without objection before granting relief from admissions.

Plaintiffs also argue that Defendants have failed to show that they acted diligently. While section 2033.300 shares the definitions of "mistake, inadvertence, and excusable neglect" with Section 473(b), the standards for relief under the two statutes are not identical. There is no express diligence requirement for relief under Section 2033.300. (See Wilcox, supra, 21 Cal.4th at 980 "[b]y eliminating the time limits on obtaining relief, [Section 2033.300, formerly section 2033(m)] is much less draconian than the previous practice--which only gave a nonresponding party 30 days after receiving notice of the deemed admissions to obtain relief"; New Albertsons, supra, 168 Cal. App. 4th at 1421 ["delay alone without a showing of substantial prejudice cannot justify the denial of a motion under the statute"].)

Finally, the Court finds relief is supported by the strong policy favoring trial on the merits, which would be all but eliminated in the present case, and the general purpose of RFAs, which do not serve as a method to determine disputed issues between the parties, but "seek to eliminate the need for proof: '[T]he purpose of the admissions procedure ... is to limit the triable issues and spare the parties the burden and expense of litigating undisputed issues.'" (St. Mary v. Superior Court (2014) 223 Cal. App. 4th 762, 775.)

The record establishes that Defense counsel's mistakes in failing to respond to the RFAs, failing to oppose Plaintiffs' motion, and failing to appear at the hearing to argue the motion resulting in the admissions are, to an extent, substantiated by the circumstances presented and were not clearly inexcusable. Plaintiffs have not made a showing that they would be substantially prejudiced by withdrawal.

Accordingly, Defendants' motion is GRANTED. Defendants are to serve code-compliant, verified responses to Plaintiffs' RFAs, Set One, without objection within ten (10) days of the issuance of this Order. Plaintiffs' request for sanctions in the amount of \$5,000 is GRANTED, to be paid by ECK within 30 (thirty) days of issuance of this Order.

IV. Conclusion

Defendants' Motion to Withdraw Requests for Admission Deemed Admitted and Permitting Defendants' Amended Responses to Requests for Admission, Set One is GRANTED. Defendants are to serve code-compliant, verified responses to Plaintiffs' RFAs, Set One, without objection within ten (10) days of the issuance of this Order. Plaintiffs' request for sanctions in the amount of \$5,000 is GRANTED, to be paid by ECK within 30 (thirty) days of issuance of this Order.

[1] Plaintiffs reference Defendants' filing of the motion on June 16, 2026. The record reflects that Defendants filed the exact same motion on June 5, 2026. The Court will adopt June 5, 2026 as the operative filing date of the present motion.